

25TRCV04402 25TRCV04402

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 25TRCV04402 Hearing Date: September 15, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

SHERRIE

GOLDEN

Plaintiff,

Case No.:

25TRCV04402

vs.

[Tentative]

Granted

TURO,

INC., TRAVELERS PROPERTY CASUALTY COMPANY OF AMERICA; and

DOES 1

through 50, inclusive,

Defendant.

Hearing

Date: September

15, 2026

Moving Parties: Defendant Turo Inc.

Responding Party: Plaintiff

Sherrie Golden

HEARING: Motion to Compel

Arbitration

The Court considered the moving,
opposition, and reply papers.

RULING

The

Court grants the Motion to Compel Arbitration.

BACKGROUND

On

December 26, 2025, Plaintiff Sherrie Golden filed the Complaint against
Defendants Turo Inc. and Travelers Property Casualty Company of America
alleging causes of action for declaratory relief, negligence, unfair business
practices, breach of the implied covenant of good faith and fair dealing,
negligent claims handling, IIED, and NIED.

On June 24, 2026,

Defendant filed the Motion to Compel Arbitration.

On June 29, 2026, Plaintiff

filed the Opposition.

On September 8, 2026,

Defendant filed the Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA")

applies in both federal and state courts to contracts evidencing a transaction involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating* (1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v. Ferrer* (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (*Woolfs v. Super. Ct.* (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2,

"[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

Defendant moves to compel arbitration based on the agreement found in Defendant Turo's terms of service.

Agreement to Arbitrate:

PLEASE READ THIS SECTION CAREFULLY. IT CONTAINS A MANDATORY ARBITRATION PROVISION AND THEREFORE AFFECTS YOUR RIGHTS AND GOVERNS HOW CLAIMS YOU AND TURO HAVE AGAINST EACH OTHER ARE RESOLVED.

Subject to applicable law, the Parties agree that any disputes or claims between us relating in any way to, or arising out of, this or previous versions of these Terms, your use of or access to the Services, or any breach, enforcement, or termination of the Agreement will be resolved in accordance with the provisions set forth in this Dispute resolution for hosts and guests residing in the United States section.

Pre-arbitration dispute resolution.

Should a dispute or claim arise between us, you and Turo agree to notify the

other Party of the nature of the dispute or claim prior to initiating arbitration, and the Parties will attempt to negotiate an informal resolution to it first. We will contact you at the email address you have provided to us; you can contact us by email at noticeofdispute@turo.com. Please provide your name, phone number, email, mailing address, and briefly describe both the nature of your dispute and the relief you would like from Turo. If the Parties are unable to resolve the claims described in the notice within 30 days after the notice is sent, then the Party intending to pursue arbitration agrees to notify the other Party via email prior to initiating the arbitration. In order to initiate arbitration, a claim must be filed with either FairClaims or the American Arbitration Association ("AAA") as set forth below, pursuant to the FairClaims Rules or AAA's Consumer Arbitration Rules, as appropriate. A form for initiating arbitration proceedings is available on the FairClaims website or AAA's website. (AAA provides a Demand for Arbitration form.) Any settlement offer made by you or Turo shall not be disclosed to the arbitrator.

Applicable law.

The below Agreement to Arbitrate evidences a transaction involving interstate commerce and is therefore governed by the Federal Arbitration Act and the applicable procedural rules of FairClaims or AAA, as applicable (see "Arbitration procedures" below). To the extent state law is applicable to the Agreement to Arbitrate, the Parties agree that the substantive law of the state of Arizona will apply, without regard to its conflict of law provisions.

Agreement to Arbitrate.

The Parties each agree that any and all disputes, claims, or controversies that have arisen or may arise at any time between you and Turo (including its respective subsidiaries, employees, officers, directors, agents, third-party insurance brokers or products, and third-party claims administrators) will be resolved by binding arbitration according to the procedure set forth below. For the purpose of this Agreement to Arbitrate, "disputes," "claims," and "controversies" shall have the broadest possible meaning that will be enforced and includes, any and all disputes and/or claims that arise out of or in any way relate to your relationship with Turo, including but not limited to: (1) your use of the Services, (2) the Agreement, these Terms and/or this Agreement to Arbitrate, including the interpretation, validity, enforceability, or scope of this Agreement to Arbitrate, or (3) your use of, or access to the Services, and anything sold, offered, or purchased through the Services (such as booking, listing, or

sharing a vehicle). Through this Agreement to Arbitrate, and subject to the below exceptions, the Parties intend to arbitrate all disputes or claims regardless of whether they are based in contract, statute, regulation, ordinance, tort (including, but not limited to, fraud, misrepresentation, fraudulent inducement, or negligence), or any other legal or equitable theory and regardless of whether they arose or accrued before the Parties entered into this Agreement to Arbitrate. For avoidance of doubt, the Parties expressly agree that this Agreement to Arbitrate encompasses all disputes or claims pertaining to the validity, enforceability, or scope of this Agreement to Arbitrate and any such disputes or claims will be referred to binding arbitration and will be resolved by the arbitrator and not a court.

Exceptions to Agreement to Arbitrate.

The only exceptions to this Agreement to Arbitrate are as follows:

Disputes

or claims that can be brought in small claims court

Injunctive

or equitable relief to prevent the actual or threatened infringement, misappropriation, or violation of a Party's copyrights, trademarks, trade secrets, patents, or other intellectual property rights. However, the Parties agree that any court proceedings shall be stayed pending the final resolution in arbitration of any arbitrable claims or issues

Any

cause of action or claim for relief which cannot be arbitrated as a matter of applicable statute or public policy. However, the Parties agree that any such court proceedings shall be stayed pending the final resolution in arbitration of any arbitrable claims or issues

In

the event California law is found to apply to this Agreement to Arbitrate, any remedy of public injunctive relief (i.e., injunctive relief that has the primary purpose and effect of prohibiting unlawful acts that threaten future injury to the general public). However, the Parties agree that any such court proceedings shall be stayed pending the final resolution in arbitration of arbitrable claims, causes of action, or issues

Arbitration procedures.

Arbitration is more informal than a lawsuit in court. Arbitration uses a neutral arbitrator instead of a judge or jury, and court review of an arbitration award is very limited. An arbitrator can award the same damages and relief on an individual basis that a court can award to an individual.

The arbitration will be conducted by FairClaims in accordance with its Arbitration Rules and Procedures effective at the time a claim is made. Where the relief sought is \$25,000 or less (not including attorneys' fees and expenses), those Arbitration Rules and Procedures may limit the proceeding to a written submission and, if requested or at the arbitrator's discretion, there may be a live hearing by teleconference or videoconference. Where the relief sought is \$25,001 or more (not including attorneys' fees and expenses), those Arbitration Rules and Procedures may provide for limited discovery and streamlined proceedings. In the event FairClaims declines to or is unable to adjudicate the claim, the arbitration will be conducted by the AAA under its Commercial Arbitration Rules, as modified by this Agreement to Arbitrate.

In all cases in which a live hearing is requested or required, you and/or Turo may attend by video or phone. To the extent a location must be established for the arbitration, it shall be held in the county in which you reside or at another mutually agreed location.

The arbitrator will decide the substance of all claims in accordance with applicable law, including recognized principles of equity, and will honor all claims of privilege recognized by law. The arbitrator shall not be bound by rulings in prior arbitrations involving different users but is bound by rulings in prior arbitrations involving the same Turo user to the extent required by applicable law. The arbitrator's award shall be final and binding and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

Where permitted, the Parties agree that all communications, evidence, and rulings in the arbitration will remain confidential, except as reasonably necessary to enforce or implement such rulings or this Agreement to Arbitrate.

Costs of arbitration.

If you initiate arbitration proceedings, you will be responsible for certain costs. Where the relief sought is \$25,000 or less (not including attorneys'

fees and expenses), you will be responsible for the initial filing fee, capped at \$375, and Turo will cover any additional fees or costs. Where the relief sought is \$25,001 or more (not including attorneys' fees and expenses), you and Turo will each pay your own arbitration fees consistent with the rules set by FairClaims (or AAA, as applicable) at the time the claim was made, unless otherwise stated in these Terms.

Severability.

With the exception of the provisions in the below section "Prohibition of class and representative actions and non-individualized relief," if an arbitrator or court decides that any part of the Agreement to Arbitrate is invalid or unenforceable, the other parts of the Agreement to Arbitrate shall still apply. If an arbitrator or court decides that any of the provisions in the section "Prohibition of class and representative actions and non-individualized relief" is invalid or unenforceable, then the entirety of the Agreement to Arbitrate shall be null and void. The remainder of the Agreement, these Terms, and dispute resolution section will continue to apply.

Right to opt-out of arbitration; procedure.

IF YOU ARE A NEW TURO USER, YOU CAN CHOOSE TO OPT-OUT OF THE AGREEMENT TO ARBITRATE BY EMAILING US AN OPT-OUT NOTICE TO ARBITRATIONOPTOUT@TURO.COM ("OPT-OUT NOTICE"). THE OPT-OUT NOTICE MUST BE RECEIVED WITHIN 30 DAYS AFTER THE DATE YOU ACCEPT THESE TERMS FOR THE FIRST TIME OR THE COMMENCEMENT OF YOUR FIRST TRIP ON TURO AS A GUEST OR HOST, WHICHEVER DATE IS EARLIEST. In order to opt-out, you must email your full name, address (including street address, city, state, and zip/postal code), and email address(es) associated with your Turo Account to arbitrationoptout@turo.com. This procedure is the only way you can opt out of the Agreement to Arbitrate. If you opt out of the Agreement to Arbitrate, all other provisions of the Agreement will continue to apply to you, including the below forum selection clause specifying Phoenix, Arizona.

Future amendments to the Agreement to

Arbitrate. Notwithstanding any provision in these Terms

to the contrary, the Parties agree that if Turo makes any amendment to the Agreement to Arbitrate in the future, that amendment shall not apply to any claim that you filed against Turo prior to the effective date of the amendment.

The amendment shall apply to all other disputes or claims governed by the Agreement to Arbitrate that have arisen or may arise between the Parties. If you do not agree to the amended terms, you may close your account within 30

days of our posting or notification and you will not be bound by the amended terms; provided that the Parties will arbitrate any dispute in accordance with the provisions of the Agreement to Arbitrate as of the date you last accepted these Terms (or accepted any subsequent changes to these Terms). Once you have submitted a valid Opt-Out Notice to Turo, you do NOT need to submit another one when these Terms are subsequently updated. Your first Opt-Out Notice will serve as a valid as to future versions of these Terms.

Judicial forum for legal disputes not subject to arbitration. Unless the Parties agree otherwise, in the event that the Agreement to Arbitrate is found not to apply to you or to a particular claim or dispute, whether (1) as a result of your decision to opt out of the Agreement to Arbitrate, (2) as a result of a decision by the arbitrator or a court order, or (3) if one of the above exceptions to the Agreement to Arbitrate applies, you agree that any claim or dispute that has arisen or may arise between the Parties will be resolved exclusively by a state, federal, or small claims court located in Phoenix, Arizona. The Parties agree to submit to the personal jurisdiction of a state court located in Maricopa County, Phoenix, Arizona or a United States District Court for the District of Arizona located in Phoenix, Arizona. The Parties agree that the substantive law of the state of Arizona will apply to any such claim or dispute without regard to conflict of law provisions.

Prohibition of class and representative actions and non-individualized relief. THE PARTIES AGREE THAT EACH OF US MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE ACTION OR PROCEEDING, WHETHER IN COURT OR ARBITRATION. UNLESS THE PARTIES AGREE OTHERWISE, THE COURT OR ARBITRATOR MAY NOT CONSOLIDATE OR JOIN MORE THAN ONE PERSON'S OR PARTY'S CLAIMS AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CONSOLIDATED, REPRESENTATIVE, OR CLASS PROCEEDING. ALSO, THE COURT OR ARBITRATOR MAY AWARD RELIEF (INCLUDING MONETARY, INJUNCTIVE, AND DECLARATORY RELIEF) ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO PROVIDE RELIEF NECESSITATED BY THAT PARTY'S INDIVIDUAL CLAIM(S). ANY RELIEF AWARDED CANNOT AFFECT OTHER USERS, SUBJECT TO THE ABOVE EXCEPTION ALLOWING PUBLIC INJUNCTIVE RELIEF TO BE SOUGHT IN COURT BUT ONLY IF THAT EXCEPTION IS FOUND TO APPLY.

(Armstrong Decl., Exhibit A.)

Existence of Valid Arbitration Agreement and

Claims Covered by Arbitration Clause

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353.) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause." (*Titolo v. Cano* (2007) 157 Cal.App.4th 310, 316.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (*California Correctional Peace Officers Ass'n v. State* (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Giuliano, supra*, 149 Cal.App.4th at p. 1284.)

"The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. "First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its

initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. (Ibid.) "For this step, it is not necessary to follow the normal procedures of document authentication." (Ibid.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

Last, "if the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.)

In opposition, Plaintiff argues that the documentary evidence submitted with the Opposition shows that Plaintiff did not disregard the contractual arbitration process that Defendant now asks the Court to compel, but instead repeatedly attempted to invoke it. Plaintiff contends that Plaintiff first served a written Pre-Arbitration Notice of Dispute, which Defendant acknowledged. After the notice period expired without resolution, Plaintiff attempted to initiate arbitration through FairClaims, the administrator designated by Defendant, by requesting the required signup link, submitting follow-up requests, and notifying Defendant of Plaintiff's intent to proceed. When FairClaims advised that arbitration could not proceed unless Defendant participated, Plaintiff followed those instructions and continued communicating with both FairClaims and DefendantArbitration while preserving Plaintiff's legal rights.

Plaintiff further notes that, months before filing the present Motion to Compel Arbitration, Defendant Turo's Associate General Counsel, Matthew Brown, advised Plaintiff that Defendant Turo, Inc.'s next step would be to compel arbitration, a course Defendant Turo, Inc. ultimately pursued. On this record, Plaintiff requests that the Court consider the complete documentary record, deny Defendant Turo, Inc.'s Motion to Compel Arbitration, and grant such other and

further relief as the Court deems just and proper.

Here,

Defendant has provided its terms of service, which include an arbitration agreement. Thus, Defendant has satisfied its initial burden. In response, Plaintiff has not provided a declaration or any other type of evidence showing that the parties did not enter into an agreement. Furthermore, Plaintiff's opposition does not provide any case law allowing the Court to deny the instant motion.

Therefore, the Court grants the Motion to Compel Arbitration.